IN THE SUPREME COURT OF INDIA

CIVIL APPELLATE JURISDICTION

CIVIL APPEAL NO. 4821 OF 2023

Ratan Lal Sharma & Ors. ... Appellants

Versus

Union of India & Ors. ... Respondents

CORAM: HON'BLE MR. JUSTICE D.Y. CHANDRACHUD (CJI) AND HON'BLE MR. JUSTICE J.B. PARDIWALA

DATE OF JUDGMENT: 15 SEPTEMBER 2023

JUDGMENT

D.Y. Chandrachud, CJI:

1. This appeal arises from a judgment dated 3rd March 2022 passed by a Division Bench of the High Court of Judicature at Allahabad dismissing a writ petition filed by the appellants under Article 226 of the Constitution of India. The appellants challenged the constitutional validity of Section 14A of the Representation of the People Act, 1950 as amended by the Representation of the People (Amendment) Act, 2019.

2. The central issue before this Court is whether the impugned provision, which mandates Aadhaar-based authentication for voter registration, violates the right to privacy guaranteed under Article 21 of the Constitution as enunciated in Justice K.S. Puttaswamy (Retd.) v. Union of India, (2017) 10 SCC 1 (Puttaswamy-I).

FACTUAL BACKGROUND

3. The appellants are citizens of India who were enrolled as voters in the electoral rolls of Uttar Pradesh. Following the 2019 Amendment, the Election Commission issued a notification dated 1st August 2022 directing all voters to link their Aadhaar numbers with their voter identification cards within a period of three months. The appellants, who had valid voter identity cards, challenged this notification contending that compulsory Aadhaar seeding violated their right to vote — a facet of their fundamental right under Article 19(1)(a) read with Article 21.

LEGAL ISSUES

4. The following questions of law arise for consideration:

(i) Whether Section 14A of the Representation of the People Act, 1950 as amended is constitutionally valid?

(ii) Whether compulsory Aadhaar authentication for voter registration constitutes an unreasonable restriction on the right to vote?

(iii) Whether the doctrine of proportionality as enunciated in Modern Dental College v. State of M.P., (2016) 7 SCC 353 is attracted?

ANALYSIS AND FINDINGS

5. On the first issue, we note that the legislative competence of Parliament to enact the impugned provision is traceable to Entry 72 of List I of the Seventh Schedule of the Constitution. The object of the provision, as stated in the Statement of Objects and Reasons, is to purify the electoral rolls and eliminate bogus voters. The means adopted — Aadhaar-based authentication — must be tested on the anvil of the right to privacy under Article 21 as interpreted in Puttaswamy-I.

6. We hold that while the State has a compelling interest in maintaining clean electoral rolls, the measure of mandatory Aadhaar seeding fails the test of proportionality. There exist less intrusive alternatives such as biometric verification at polling booths or enhanced documentary verification that would achieve the same objective without creating a surveillance architecture around voter data. The chilling effect on the right to vote is substantial.

ORDER

7. For the foregoing reasons, we allow this appeal and set aside the impugned judgment of the High Court. Section 14A of the Representation of the People Act, 1950 as amended by the 2019 Act is declared unconstitutional to the extent it mandates compulsory Aadhaar authentication as a condition for voter registration. The Election Commission is directed to forthwith cease the collection and seeding of Aadhaar data in the electoral rolls. No order as to costs.

.....J.
(D.Y. Chandrachud, CJI)

.....J.
(J.B. Pardiwala, J.)

New Delhi; September 15, 2023